



Procedure No.: EXP202201704 (PS/00393/2022)

Appeal No. RR/00110/2023

Examined the appeal for reconsideration filed by the entity INFINITY ECOM S.L. with CIF: B42993956, holder of the website, ***URL.1 (hereinafter, "the appealing party"), against the resolution issued by the Director of the Spanish Agency for Data Protection in the procedure, PS/00393/2021, for violation of the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (GDPR), and in the L.O. 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDPGDD), and based on the following:

FACTS

FIRST: On January 18, 2023, the Director of the Spanish Agency for Data Protection issued a resolution in the sanctioning procedure PS/00393/202, opened against the entity INFINITY ECOM S.L., which was notified on January 23, 2023, under Article 13 of the GDPR, for the lack of necessary information in the "Privacy Policy" on its website, with a penalty of 5,000 euros (five thousand euros), and under Article 22.2 of the LSSI, for the irregularities detected on its website regarding the "Cookies Policy," with a penalty of 5,000 euros (five thousand euros).

Additionally, the entity INFINITY ECOM S.L. was ordered to implement, within one month, the necessary corrective measures to adapt its actions to the personal data protection regulations, regarding Article 13 of the GDPR, as well as to inform this Agency within the same period about the measures adopted.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00393/2022, the following was recorded:

On May 9, 2022, this Agency verified the following characteristics regarding its "Privacy Policy" and its "Cookies Policy":

a) Regarding the "Privacy Policy":

If accessed through the link located at the bottom of the main page, the "Privacy Policy" leads to a new page ***URL.2, where information is provided about: the personal information collected; how such personal information is used; how that information is shared; the rights that assist the user and how to contact the person responsible for the website.

Regarding the identification of the person responsible for the processing of personal data obtained through the website, only a contact email address was provided, lacking basic identification data such as the name or corporate name, the CIF or NIF, and the address of the registered office.

b) Regarding the Cookies Policy:

1.- Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it was verified that cookies that are not technical or necessary are used (performance cookies: `_landing_page`; `shopify_sa_t`; `_shopify_y`; `_shopify_s`; `_shopify_sa_p`; `_y`; `_s`; `__kla_id`; targeting cookies: `_pin_unauth`; `test_cookie`; IDEMÁS; `_gcl_a`; `_fbp`).

2.- There is a cookie information banner on the main page with the following message: "This website uses cookies to ensure you get the best experience on our website." <> <>

If the <> link is clicked, the website displays the "Privacy Policy" page ***URL.3 mentioned above.

There is no "Cookies Policy." The only information about cookies provided by the website is found on the "Privacy Policy" page: "(...) We collect information from the device using the following technologies:

- Cookies are data files that are placed on your device or computer and often include an anonymous unique identifier. For more information about cookies and how to disable them, visit

<http://www.allaboutcookies.org> (...)"

There is no mechanism that allows rejecting cookies or managing them in a granular manner through a control panel.

THIRD: On February 20, 2023, a written appeal for reconsideration was received by this Agency, submitted by the entity INFINITY ECOM S.L., in which, among other things, the following is alleged: FIRST.- We express total disagreement with the sanction for lack of Cookies policies, as the file developed and prepared by the AEPD mentions the different cookies that the website was using at that time. The website only had a technical redirection problem, but not a lack of content. We reproduce in this document the cookies that the AEPD describes in the file itself. Therefore, we can conclude that the website did indeed visibly display the different cookies it used, the domains, as well as the informative descriptions of them. If they had not been visible on the website, the AEPD would not have been able to obtain and attach them in this file. As previously mentioned, the only existing problem at the time was a technical redirection failure.

SECOND.- Regarding the identity and contact details of the responsible party, the company established an email at all times so that any user could contact the company and exercise each and every one of the rights described in the policies themselves.

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THIRD.- The company has had the intention to act in accordance with the law and provide all users with the maximum guarantees to safeguard their rights. As can be verified, from the beginning, the company has provided all the information on its website.

It was not until the date of the last requirement that the company became aware that there was a sanction procedure against it. Furthermore, had it known, it would have rectified any requirement from the AEPD at that very moment. Evidence of this can be seen in the following screenshots that show the current state of the website.

At no time has the company intended to violate European regulations on data protection; therefore, given the good practices that the company has demonstrated, it is unacceptable to impose such a high penalty for a technical redirection error.

FOURTH.- The European Data Protection Committee already expressed itself in Opinion 4/2007 on the concept of personal data, stating that “an unintended outcome would be to end up applying data protection rules to situations that, in principle, should not be covered by these rules; and for which they were not conceived by the legislator.”

In short, this is a matter of proportionality in the application of the regulations that “causes an excessive burden or even absurd consequences,” as stated by the European Data Protection Committee in Opinion 4/2007.

The initiation agreement of the present procedure bases its arguments on the lack of information to users by the company when, in reality, what has occurred has been a technical error on the website.

The intention of INFINITY ECOM S.L. has been to cooperate at all times with the Spanish Data Protection Agency and to resolve any doubts that may arise, as well as to clarify all the facts.

Had the notification been received prior to the initiation of this file, the company would have acted with the utmost urgency. For all the above,

I REQUEST that the allegations concerning this matter be considered as duly submitted in time and form.

I REQUEST that the file be closed as it has been duly demonstrated that the company complied and complies with each of the legal provisions regarding data protection.

I REQUEST that these sanctions be annulled as it has been demonstrated that the company complied with the legal regulations.

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LEGAL GROUNDS

I

Competence.

The Director of the Spanish Data Protection Agency is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations

The joint assessment of the documentation in the procedure brings to the attention of the AEPD a view of the reported action that has been reflected in the proven facts stated above. However, in response to the allegations presented by the entity being appealed in the appeal for reconsideration, the following should be indicated:

a).- Regarding the statement made that it was not until the date of the last requirement that the company became aware that there was a sanction procedure against it, the following should be noted: On 10/17/22, the Director of the Spanish Data Protection Agency initiated a sanctioning procedure against the entity being appealed, and according to the records of the AEPD, it was made available to the entity in its electronic headquarters on 10/18/22, noting that it did not have access to it.

Although the notification was validly carried out by electronic means, being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, for informational purposes, a copy was sent by postal mail to the address: C/ MIGUEL HUE, 1 - 1 POLÍGONO SUR 11408 JEREZ DE LA FRONTERA CÁDIZ, which was returned to sender on 10/28/22, with the message "unknown."

On 11/03/22, the notification of the initiation agreement was made through an announcement in the Unique Edict Board of the Official State Gazette, in accordance with Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), so the notification was validly carried out, being considered completed in accordance with the provisions of Article 41 of the aforementioned Law.

b).- Regarding the allegations of the entity in which it states that "the identity and contact details of the person responsible, the company established at all times a contact email," the following should be indicated:

When accessing the "Privacy Policy" ***URL.2, it was found that information was provided about the information collected by the website; how they used that information or how they shared that information, but it was observed that they did not inform.

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conveniently of the rights that users of the website had regarding the processing of their personal data, nor were they informed that they had the right to file a complaint, in this case, before the AEPD.

Regarding the identification of the data controller of the personal data obtained through the website, only a contact email address was provided, lacking basic identification data such as the name or corporate name, the CIF or NIF, and the address of the registered office.

c).- Regarding the deficiencies detected in the "Cookie Policy," it was found that:

1.- Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it was detected that cookies that were not technical or necessary were being used without the prior consent of the user (performance: _landing_page; shopify_sa_t; _shopify_y; _shopify_s; _shopify_sa_p; _y; _s; __klla_id and targeting _pin_unauth; test_cookie; IDEMás; _gcl_a; _fbp)

Regardless of whether the website informed about the different cookies it used, as stated in the

allegations, it is necessary to indicate that the regulations, specifically Article 22.2 of the LSSI,

establish that cookies that are not strictly technical or necessary, such as performance or targeting

cookies, must have the prior consent of the user to be used.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection:

RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by the entity INFINITY ECOM S.L. with CIF: B42993956, owner of the website, ***URL.1, against the resolution issued by the Director of the Spanish Agency for Data Protection on 01/18/23, in the sanctioning procedure: PS/00393/2022

SECOND: NOTIFY this resolution to INFINITY ECOM S.L.

THIRD: Warn the sanctioned party that the imposed sanction must be made effective once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it in the restricted account No. ES00 0000 0000 0000 0000 0000,

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opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A. or otherwise, collection will proceed in the executive period.

Upon receiving the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP.

They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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